

**SUPREME COURT OF THE STATE OF NEW YORK  
COUNTY OF KINGS**

Index No.:

-----X  
LEVAR A. JEMMOTT and RUTHIE SNYDER,**SUMMONS**

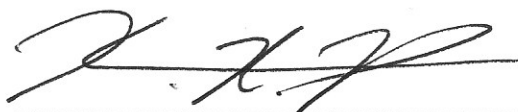
Plaintiffs,

Plaintiffs designate  
KINGS County as the  
place of trial.

-against-

THE CITY OF NEW YORK, DET. JOSEPH C.  
WELDON and P.O. JOHN DOES 1-10 on ARREST  
#K14634014,The basis of venue  
is where the Tort  
Arose.Defendants.  
-----XThe Tort Arose in:  
KINGS COUNTY, NEW  
YORK.**To the above named Defendants:**

**You are hereby summoned** to answer the complaint in this action, and to serve a copy of your answer, or, if the complaint is not served with this summons, to serve a notice of appearance on the Plaintiffs' attorneys within twenty days after the service of this summons, exclusive of the day of service, where service is made by delivery upon you personally within the state, or, within 30 days after completion of service where service is made in any other manner. In case of your failure to appear or answer, judgment will be taken against you by default for the relief demanded in the complaint.

DATED: JAMAICA. NEW YORK  
JULY 15, 2015KAREEM R. VESSUP  
THE LAW OFFICE OF KAREEM R. VESSUP  
ESQ.Attorneys for Plaintiff  
LEVAR A. JEMMOTT and RUTHIE SNYDER  
89-31 161<sup>st</sup> Street, Suite 705  
Jamaica, New York 11432  
Our File No. 14-1375TO: Corporation Counsel of  
The City of New York  
100 Church Street  
New York, NY 10007Det. Joseph C. Weldon  
1 Police Plaza  
New York, NY 10038

P.O. John Does 1-10  
1 Police Plaza  
New York, NY 10038

**SUPREME COURT OF THE STATE OF NEW YORK  
COUNTY OF KINGS**

-----X  
LEVAR A. JEMMOTT and RUTHIE SNYDER,

Index No.:

Plaintiffs,

-against-

**VERIFIED COMPLAINT**

THE CITY OF NEW YORK, DET. JOSEPH C.  
WELDON and P.O. JOHN DOES 1-10 on ARREST  
#K14634014,

Defendants.

-----X

Plaintiffs **LEVAR A. JEMMOTT and RUTHIE SNYDER**, by their attorneys THE LAW OFFICE OF KAREEM R. VESSUP ESQ., complaining of the Defendants, respectfully allege upon information and belief, as follows:

1. At all times herein mentioned, Plaintiff **LEVAR A. JEMMOTT** was, and still is, a resident of the County of Kings, City and State of New York.

2. At all times herein mentioned, Plaintiff **RUTHIE SNYDER** was, and still is, a resident of the County of Kings, City and State of New York.

3. At all times herein mentioned, Defendant **THE CITY OF NEW YORK** was, and still is, a municipal corporation duly organized and existing by virtue of the laws of the State of New York.

4. Upon information and belief, at all times mentioned, Defendants **DET. JOSEPH C. WELDON and P.O. JOHN DOES 1-10 ON ARREST #K14634014** were and are Detectives and/or Police Officers of the Defendant **THE CITY OF NEW YORK**, and at all times herein were acting in such capacity as the agents, servants and employees of

the Defendant, **THE CITY OF NEW YORK**.

5. On or about July 11, 2014 and July 15, 2014, both within ninety (90) days after the claims herein arose, the Plaintiffs served Notices of Claim, in writing and sworn to on their behalf, upon the Defendant **THE CITY OF NEW YORK**, by e-filing the **LEVAR A. JEMMOTT** Notice of Claim with the NYC Comptroller's Office through its e-claim system and delivering a copy of the **RUTHIE SNYDER** Notice of Claim in duplicate to the officer designated to receive such process personally, which Notices of Claim advised the Defendant **THE CITY OF NEW YORK**, of the nature, place, time and manner in which the claim arose, the items of damage and injuries sustained so far as was then determinable.

6. At least thirty (30) days have elapsed since the service of the claims prior to the commencement of this action and adjustment of payment thereof has been neglected or refused, and this action has been commenced within one year and ninety (90) days after the cause of action herein alleged accrued.

7. Plaintiff has complied with the request of the municipal Defendant for an oral examination pursuant to Section 50h of the General Municipal Law in that a 50h hearing was held on March 10, 2015.

8. Defendants waived their statutory right to a Hearing pursuant to General Municipal Law Section 50h by failing to schedule said hearing to examine Plaintiff RUTHIE SNYDER.

#### BACKGROUND FACTS

9. That on or about April 17, 2014 at approximately 5:00am Plaintiffs resided at 1800 Pitkin Avenue Apt 2C Brooklyn, NY.

10. At approximately 5:00am Plaintiffs were asleep in their apartment when Defendants **DET. JOSEPH C. WELDON and P.O. JOHN DOES 1-10 ON ARREST #K14634014** forcibly entered Plaintiffs' apartment.

11. During the course of forcibly entering Plaintiffs' apartment Defendants destroyed the front door to the apartment, rendering it inoperable and unsalvageable.

12. Plaintiffs along with one other were forcibly restrained using handcuffs for more than one hour as the premises was searched by Defendants.

13. Plaintiffs made numerous requests of Defendants to see a warrant allowing them into the apartment. Defendants refused to produce any warrant and no Defendant even indicated that they were searching the home pursuant to a valid search warrant.

14. Plaintiff **LEVAR A. JEMMOTT** was arrested under Kings County Arrest Number K14634014 and taken to the NYPD 73<sup>rd</sup> Pct. followed by Central Booking then Kings County Criminal Court.

15. Defendants provided information to the Kings County District Attorney's Office for the purpose of initiating a criminal prosecution against **LEVAR A. JEMMOTT**.

16. **LEVAR A. JEMMOTT** was charged and prosecuted in Kings County Criminal Court under Docket #2014KN027464 for various crimes including felony charges.

17. Upon information and belief, and pursuant to the Criminal Procedure Law, the case was required to be presented to a Grand Jury and an Indictment obtained within 6 months of the arrest.

18. No indictment was obtained in this case and all charges against **LEVAR A. JEMMOTT** were dismissed and sealed on October 31, 2014.

19. During the search of Plaintiffs' residence Defendants broke the entrance door, bedroom door, closet door & frame as well as an additional door lock.

20. Defendants made no effort or arrangements to repair and/or replace any of the damages to Plaintiffs' apartment and as a result Plaintiff **RUTHIE SNYDER** was indebted to her landlord in the amount of approximately \$1,100.00.

**AS AND FOR A FIRST CAUSE OF ACTION**

21. Plaintiffs repeat, reiterate and re-allege all of the allegations contained in paragraphs "1" through "20" with full force and effect as though set forth at length herein.

22. That on April 17, 2014 at approximately 5:00am at 1800 Pitkin Avenue Apt 2C Brooklyn, NY the Defendants jointly and severally in their capacity as police officers, detectives and/or sergeants, without any warrant or any other legal process and

without any legal right, intentionally entered and remained in Plaintiffs' apartment.

23. Defendants did not have legal authority, consent or privilege to enter the property. Additionally no nuisance or emergency existed allowing Defendants to enter the premises.

24. As a result of the Defendants unlawful intrusion Plaintiffs have been damaged.

**AS AND FOR A SECOND CAUSE OF ACTION**

25. Plaintiffs repeat, reiterate and re-allege all of the allegations contained in paragraphs "1" through "24" with full force and effect as though set forth at length herein.

26. That on April 17, 2014 at approximately 5:00am at 1800 Pitkin Avenue Apt 2C Brooklyn, NY the Defendants jointly and severally in their capacity as police officers, detectives and/or sergeants, without any warrant or any other legal process and without any legal right, intentionally interfered with the property of the Plaintiffs by damaging the entrance door, bedroom door, bedroom closet and frame and another door lock within apartment 2C at 1800 Pitkin Avenue Brooklyn, NY.

27. Defendants did not have legal authority, consent or privilege to damage the aforementioned property. Additionally no nuisance or emergency existed that would justify the unlawful intrusion.

28. As a result of the Defendants' unlawful intrusion

Plaintiffs sustained property damage totaling at least \$1,100.00.

**AS AND FOR A THIRD CAUSE OF ACTION**

29. Plaintiffs repeat, reiterate and re-allege all of the allegations contained in paragraphs "1" through "28" with full force and effect as though set forth at length herein.

30. That on April 17, 2014 at approximately 5:00am at 1800 Pitkin Avenue Apt 2C Brooklyn, NY the Defendants jointly and severally in their capacity as police officers, detectives and/or sergeants, subjected Plaintiffs, **LEVAR A. JEMMOTT and RUTHIE SNYDER** to an imminent fear of a harmful or offensive physical contact by forcibly breaking into their apartment and approaching them with drawn weapons and handcuffs, and by refusing to disclose their purpose for being inside of Plaintiffs' home.

31. All of the above actions placed the Plaintiffs in imminent fear of harmful and/or offensive physical contact without their consent.

32. Defendants did not have legal authority or privilege for their actions.

33. As a result of Defendants' unlawful conduct Plaintiffs were damaged.

**AS AND FOR A FOURTH CAUSE OF ACTION**

34. Plaintiffs repeat, reiterate and re-allege all of the

allegations contained in paragraphs "1" through "33" with full force and effect as though set forth at length herein.

35. That on April 17, 2014 at approximately 5:00am at 1800 Pitkin Avenue Apt 2C Brooklyn, NY the Defendants jointly and severally in their capacity as police officers, detectives and/or sergeants, did commit a battery upon Plaintiffs **LEVAR A. JEMMOTT and RUTHIE SNYDER** by subjecting them to harmful and/or offensive physical contact by handcuffing them with weapons trained on them and restraining them in that manner for at least 1 hour.

36. Defendants did not have legal authority to physically contact the Plaintiffs in the manner previously described.

37. Plaintiffs did not consent to the aforementioned contact nor was it privileged by law.

38. As a result of the Defendants unlawful conduct Plaintiffs were damaged.

#### **AS AND FOR A FIFTH CAUSE OF ACTION**

39. Plaintiffs repeat, reiterate and re-allege all of the allegations contained in paragraphs "1" through "38" with full force and effect as though set forth at length herein.

40. That on April 17, 2014 at approximately 5:00am at 1800 Pitkin Avenue Apt 2C Brooklyn, NY the Defendants jointly and severally in their capacity as police officers, detectives and/or sergeants, arrested Plaintiff **LEVAR A. JEMMOTT** without warrant, probable cause or other legal authority and confined Plaintiff in

custody at the NYPD 73<sup>rd</sup> Pct., Central Booking and the Kings County Criminal Courts.

41. Plaintiff **LEVAR A. JEMMOT** was aware of his confinement during the entire time he was detained.

42. Defendants did not have authority, consent or privilege to falsely arrest and imprison Plaintiff **LEVAR A. JEMMOTT** in the manner previously described.

43. As a result of the Defendants' unlawful conduct Plaintiff **LEVAR A. JEMMOTT** was damaged.

#### AS AND FOR A SIXTH CAUSE OF ACTION

44. Plaintiff repeats, reiterates and re-alleges all of the allegations contained in paragraphs "1" through "43" with full force and effect as though set forth at length herein.

45. That on April 17, 2014 at approximately 5:00am at 1800 Pitkin Avenue Apt 2C Brooklyn, NY the Defendants jointly and severally in their capacity as police officers, detectives and/or sergeants, contacted and transmitted information to the Kings County District Attorney's Office for the purpose of initiating criminal proceedings against Plaintiff **LEVAR A. JEMMOTT**.

46. As a result Plaintiff was charged in Kings County Criminal Court under Docket #2014KN027464 and charged with multiple crimes in violation of the New York Penal Law, including one or more felony charges.

47. This prosecution was initiated in malice by Defendants

to achieve a purpose other than a lawful one.

48. Upon information and belief the Defendants failed to take reasonable steps to stop the prosecution of the Plaintiff and instead maliciously and deliberately provided false and/or incomplete information to the District Attorney's office to induce and continue the prosecution of the Plaintiff.

49. Said prosecution continued until October 31, 2014 when all charges against Plaintiff were dismissed and sealed by Judge M. Sciarrino.

50. As a result of this malicious prosecution, Plaintiff was deprived of his liberty and suffered humiliation, mental anguish, indignity and frustration of an unjust criminal prosecution. Plaintiff was otherwise damaged.

**AS AND FOR A SEVENTH CAUSE OF ACTION**

51. Plaintiff repeats, reiterates and re-alleges all of the allegations contained in paragraphs "1" through "50" with full force and effect as though set forth at length herein.

52. That the Defendants **DET. JOSEPH C. WELDON and P.O. JOHN DOES 1-10 ON ARREST #K14634014**, were at all times relevant, duly appointed and acting officers of the New York City Police Department.

53. At all times mentioned herein, said police officers were acting under color of law, to wit: the statutes, ordinances,

regulations, policies, customs and usage of the State of New York and/or City of New York.

54. Plaintiffs **LEVAR A. JEMMOTT** and **RUTHIE SNYDER** bring this cause of action pursuant to 42 United States Code, Section 1983 and 42 United States Code, Section 1988.

55. That on April 17, 2014 at approximately 5:00am at 1800 Pitkin Avenue Apt 2C Brooklyn, NY the Defendants jointly and severally in their capacity as police officers, detectives and/or sergeants, did place Plaintiffs in imminent fear of physical contact by approaching them with their loaded firearms and/or other objects which they used to physically seize, strike and/or restrain the Plaintiffs. All of the above actions placed the Plaintiffs in imminent fear of a harmful or offensive physical contact. At no time did the Plaintiffs consent to the unlawful actions of the Defendants, nor were they authorized by law.

56. That on April 17, 2014 at approximately 5:00am at 1800 Pitkin Avenue Apt 2C Brooklyn, NY the Defendants jointly and severally in their capacity as police officers, detectives and/or sergeants, without any warrant, order or other legal process and without any legal right, wrongfully and unlawfully arrested Plaintiff **LEVAR A. JEMMOTT**, restrained him and interfered with his liberty and then took him into custody to the NYPD 73<sup>rd</sup> Precinct in Kings County and thereafter Central Booking and the Kings County Criminal Courts. The Plaintiff was held in custody for more than 24 hours before he was arraigned. The Defendants

intentionally confined the Plaintiff without his consent and the confinement was not otherwise privileged by law and, at all times, the Plaintiff was conscious of his confinement.

57. That beginning on or about April 17, 2014 and continuing until the end of the aforementioned criminal prosecution on or about October 31, 2014 the Defendants arrested and maliciously prosecuted Plaintiff **LEVAR A. JEMMOTT** without the Defendants possessing probable cause to do so. Defendants failed to take steps to end the criminal proceeding and the prosecution ended with dismissal of all criminal charges on October 31, 2014.

58. That on April 17, 2014 at approximately 5:00am at 1800 Pitkin Avenue Apt 2C Brooklyn, NY the Defendants jointly and severally in their capacity as police officers, detectives and/or sergeants, intentionally and unlawfully interfered with Plaintiffs' real and personal property by breaking into their apartment and destroying various property within all without consent, legal authority or privilege.

59. The above actions of the Defendants resulted in the Plaintiffs being deprived of the following rights under the United States Constitution:

- a. Freedom from assault;
- b. Freedom from battery;
- c. Freedom from false arrest;
- d. Freedom from false imprisonment;
- e. Freedom from malicious prosecution;
- f. Freedom from trespass to real and property;

60. The Defendants subjected Plaintiffs to such deprivations, either in a malicious manner or with reckless disregard of the Plaintiffs' rights or with deliberate indifference to those rights afforded individuals by the Fourth and Fourteenth Amendments to the United States Constitution.

61. The direct and proximate results of the Defendants' acts are that the Plaintiffs were forced to endure pain and suffering, and were otherwise damaged.

**AS AND FOR EIGHTH CAUSE OF ACTION**

62. Plaintiff repeats, reiterates and re-alleges all of the allegations contained in paragraphs "1" through "61" with full force and effect as though set forth at length herein.

63. Defendant **THE CITY OF NEW YORK** has grossly failed to train and adequately supervise its police officers in the fundamental law of arrest, search and seizure especially when its police officers are not in possession of a court authorized arrest and/or search warrant and that its police officers should only make an arrest based on probable cause and should only search an individual's residence with a lawfully issued search warrant.

64. Defendant **THE CITY OF NEW YORK** was negligent by failing to implement a policy with its Police Department and instruct police officers who, absent the consent of the Plaintiffs (or similarly situated individuals) or without the possession of a court authorized arrest or search warrant, said police officers of

**THE CITY OF NEW YORK** are not to arrest individuals where probable cause is lacking and are not to conduct searches of an individual's residence.

65. **THE CITY OF NEW YORK** is negligent due to its failure to implement a policy with its Police Department or actively enforce the law, that Probable cause must be present before an individual such as Plaintiff herein can be arrested and that individual residences cannot be searched by NYPD officers without lawfully issued search warrants.

66. The foregoing acts, omissions and systemic failures are customs and policies of **THE CITY OF NEW YORK** which caused the Defendant police officers to falsely arrest, maliciously prosecute, assault, batter and trespass on the real and personal property of Plaintiffs, under the belief that they would suffer no disciplinary actions for their failure to take proper or prudent steps in this case.

**AS AND FOR AN NINTH CAUSE OF ACTION**

67. Plaintiff repeats, reiterates and re-alleges all of the allegations contained in paragraphs "1" through "68" as if set forth at length herein.

68. Defendant **THE CITY OF NEW YORK** was negligent in that prior to and at the time of the acts complained of herein, due to the prior history of the Detective and Police Officer Defendants knew or should have known of the bad disposition of said

Defendants or had knowledge of facts that would put a reasonably prudent employer on inquiry concerning their bad disposition and the fact these officers were not suitable to be hired and employed by **THE CITY OF NEW YORK** and that due to their lack of training, these officers should have had adequate supervision so that they would not arrest innocent individuals or search individual's homes and destroy their personal property without a warrant. Defendant failed to act reasonably in supervising, disciplining, removing or otherwise taking appropriate action against these officers to protect the Plaintiffs herein and other members of the community similarly situated.

69. As a direct and proximate result of the Defendant's failures Plaintiffs were damaged.

#### **AS AND FOR A TENTH CAUSE OF ACTION**

70. Plaintiff repeats, reiterates and re-alleges all of the allegations contained in paragraphs "1" through "69" as if set forth at length herein.

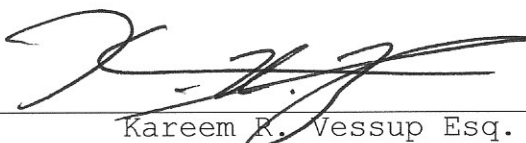
71. That on April 17, 2014 at approximately 5:00am at 1800 Pitkin Avenue Apt 2C Brooklyn, NY the Defendants jointly and severally in their capacity as police officers, detectives and/or sergeants, owed Plaintiffs **LEVAR A. JEMMOTT and RUTHIE SNYDER** a duty to act reasonably in the carrying out of their duties and responsibilities.

72. That on April 17, 2014 at approximately 5:00am at 1800 Pitkin Avenue Apt 2C Brooklyn, NY the Defendants jointly and severally in their capacity as police officers, detectives and/or sergeants, breached their duty owed to Plaintiffs by conducting themselves in a manner that was excessive, overly aggressive, willful, wanton, grossly negligent, reckless, negligent and outside the bounds of the laws of New York and The United States all in disregard of Plaintiffs' rights as citizens of the United States and the State of New York.

73. That on April 17, 2014 at approximately 5:00am at 1800 Pitkin Avenue Apt 2C Brooklyn, NY the Defendants jointly and severally in their capacity as police officers, detectives and/or sergeants, failed to conduct themselves consistent with the standards of the NYPD as stated in the NYPD Patrol Guide.

74. As a direct and proximate result of the Defendants conduct on April 21, 2014 Plaintiffs were damaged.

**WHEREFORE**, Plaintiffs demand judgment against the Defendants, together with the costs and disbursements of this action in an amount that exceeds the jurisdictional limit of all lower courts, together with punitive damages, attorney's fees and costs for bringing this case.

  
Kareem R. Vessup Esq.

**ATTORNEY VERIFICATION**

**KAREEM R. VESSUP ESQ.**, affirms pursuant to CPLR §2106 and under penalties of perjury:

That affirmant is the attorney for Plaintiffs **LEVAR A. JEMMOTT and RUTHIE SNYDER** in the action within; that affirmant has read the foregoing:

**COMPLAINT**

and knows the contents thereof; that the same is true to affirmant's own knowledge except as to the matters therein stated to be alleged upon information and belief, and as to those matters affirmant believes them to be true. The reason that this verification is not being made by the Plaintiffs and instead by affirmant is that Plaintiffs are not presently in the county where the attorneys for the Plaintiffs have their law office.

Affirmant further says that the source of affirmant's information and the grounds of affirmant's belief as to all matters not stated upon affirmant's knowledge are from investigations made on behalf of said plaintiffs.

DATED: JAMAICA, NEW YORK  
JULY 15, 2015

  
KAREEM R. VESSUP

Index No.

**SUPREME COURT OF THE STATE OF NEW YORK  
COUNTY OF KINGS**

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LEVAR A. JEMMOTT and RUTHIE SNYDER,

Plaintiffs,

- against -

THE CITY OF NEW YORK, DET. JOSEPH C. WELDON and P.O. JOHN DOES 1-  
10 on ARREST #K14634014

Defendants.

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**SUMMONS AND VERIFIED COMPLAINT**

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**LAW OFFICE OF KAREEM R. VESSUP ESQ.**

Attorneys for Plaintiffs

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